

23STCV28714 23STCV28714

County: los-angeles

Division: Civil Law and Motion

Department: 733

Hearing date: 2026-06-25

Motion: PLAINTIFF'S MOTION FOR ATTORNEY FEES, COSTS AND EXPENSES

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Case Number: 23STCV28714 Hearing Date: June 25, 2026 Dept: 733

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

KEVIN

R. CARTER, an individual,

Plaintiff,

vs.

GENERAL MOTORS LLC, a Delaware limited liability company,

and DOES 1-10, inclusive,

Defendants.

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CASE NO.: 23STCV28714

[TENTATIVE] ORDER RE: PLAINTIFF'S MOTION
FOR ATTORNEY FEES, COSTS AND EXPENSES

Dept. 733

8:30 a.m.

June 25, 2026

I.

INTRODUCTION

This is a Song-Beverly
action.

On November 27,
2023, Plaintiff Kevin R. Carter ("Plaintiff") filed a complaint against
Defendant General Motors LLC ("Defendant" or "GM"), alleging causes of action
for (1) Violation of Subdivision (d) of Civil Code Section 1793.2, (2)
Violation of Subdivision (b) of Civil Code Section 1793.2, (3) Violation of
Subdivision (a)(3) of Civil Code Section 1793.2, and (4) Breach of the Implied
Warranty of Merchantability.

On October 15,
2025, Plaintiff filed a memorandum of costs.

On January 15,

2026, the Court denied Defendant's motion to tax costs.

On January 30,
2026, Plaintiff filed the instant motion for attorney fees.

On June 11, 2026,
Defendant filed an opposition.

On June 17, 2026,
Plaintiff filed a reply.

II.

LEGAL STANDARD

If the
buyer prevails in an action under [the Song-Beverly Act], the buyer shall be
allowed by the court to recover as part of the judgment a sum equal to the
aggregate amount of costs and expenses, including attorney's fees based on
actual time expended, determined by the court to have been reasonably incurred
by the buyer in connection with the commencement and prosecution of such
action.

(Civ. Code, §1794, subd. (d).)

The prevailing party has the
burden of showing that the requested attorney fees are reasonable. (Robertson
v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th
785, 817-818 (Robertson).) The party seeking attorney fees "is not
necessarily entitled to compensation for the value of attorney services
according to [his] own notion or to the full extent claimed by [him]." (Levy
v. Toyota Motor Sales, USA, Inc. (1992) 4 Cal.App.4th 807, 816, brackets in
original and internal citations omitted.) "A trial court may not rubber stamp
a request for attorney fees, but must determine the number of hours reasonably
expended.' [Citation.]" (Morris v. Hyundai Motor America (2019) 41
Cal.App.5th 24, 38.)

The lodestar approach is the
prevailing method for calculating attorney fees under Song-Beverly Act claims.
(Robertson, supra, 144 Cal.App.4th at pp. 818-819.) "The reasonableness
of attorney fees is within the discretion of the trial court, to be determined

from a consideration of such factors as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. [Citation.] The court may also consider whether the amount requested is based upon unnecessary or duplicative work. [Citation.]” (Wilkerson v. Sullivan (2002) 99 Cal.App.4th 443, 448.) “The courts repeatedly have stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom [citation], and this includes the determination of the hourly rate that will be used in the lodestar calculus. [Citation.]” (569 E. Cnty. Boulevard LLC v. Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426, 436–437.) 2

III.

EVIDENTIARY OBJECTIONS

Plaintiff objects

to certain portions of the Declaration of Kyle Roybal submitted in

opposition to the instant motion.

The Court overrules each of the objections.

IV.

DISCUSSION

Plaintiff is seeking an attorney’s fees award of \$33,397.90, which includes (1) \$14,605.50 in fees to Prestige Legal Solutions, (2) \$2,789.89 in costs to Prestige Legal Services, and (3) \$16,002.50 in fees to the Castruita Law Firm.

A. Timeliness

Defendant first

contends that the Court should deny the instant motion on the ground that

it is untimely.

California Rules of Court, Rule

3.1702(b)(1) states that “[a] notice of motion to claim attorney’s fees for services up to and including the rendition of judgment in the trial court-including attorney’s fees on an appeal before the rendition of judgment in the trial court-must be served and filed within the time for filing a notice of

appeal under rules 8.104 and 8.108 in an unlimited civil case or under rules 8.822 and 8.823 in a limited civil case.”

Rule 8.104

provides that a notice of appeal must be filed on or before the earliest of:

(A) 60 days after the superior court clerk serves on the party filing the notice of appeal a document entitled “Notice of Entry” of judgment or a filed-endorsed copy of the judgment, showing the date either was served; (B) 60 days after the party filing the notice of appeal serves or is served by a party with a document entitled “Notice of Entry” of judgment or a filed-endorsed copy of the judgment, accompanied by proof of service; or (C) 180 days after entry of judgment.

Here,

on June 13, 2025, Plaintiff filed the Notice of Settlement. On September 30, 2025, the Court ordered the case dismissed without prejudice pursuant to the parties’ oral stipulation. (See Sept. 30, 2025 Minute Order.) The Court then served the parties with the order of dismissal on this same date. Defendant maintains that the order of dismissal is considered a “Notice of Entry,” which would trigger the 60-day clock, making the instant motion untimely. The Court agrees.

The newly decided *Hatlevig v. Gen. Motors LLC* (2026) 118 Cal.App.5th 644 (*Hatlevig*) is instructive. There, the Court dealt with the same issue of what exactly “started the clock running” for purposes of filing an attorney fee motion in a Song-Beverly action. (*Id.* at p. 649.) In *Hatlevig*, the parties reached a settlement whereby the plaintiff would surrender the vehicle and dismiss the action, and GM would pay the plaintiff \$100,00.00. (*Id.* at p. 646.) The plaintiff’s counsel notified the trial court of the settlement at a trial readiness conference on June 2, 2023, when the Court ordered a dismissal to be filed within 45 days. (*Ibid.*) On July 11, 2023, the court clerk generated a “NOTICE OF DISMISSAL BY COURT,” which stated the “CASE [WOULD BE] DEEMED DISMISSED WITHOUT PREJUDICE ON 08/15/2023” unless a judgment or dismissal was filed or a party appeared ex parte and showed good cause why the case should not be dismissed. The clerk mailed the notice to the parties on July 12, 2023. Neither event specified in the notice occurred by August 15, 2023, and the plaintiff filed a motion for attorney fees on August 31, 2023. (*Id.* at pp. 646-647.) The trial court denied the motion on the ground that it was untimely. (*Id.* at p. 647.) The *Hatlevig* Court affirmed. (*Id.* at p. 651.)

First, the Hatlevig Court stated that “[a] voluntary dismissal, though not appealable, starts the clock running on the time to move for attorney fees when the dismissal concludes the litigation and triggers a right to fees.” (Id. at p. 649.) “A voluntary dismissal is ‘effectively a “judgment”’ within the meaning of the rule prescribing the time to appeal. (Citations.) Thus, ‘the clock starts to run [on the time to move for attorney fees] from either the service of notice of entry of judgment or dismissal (starting a 60-day clock), or if no such notice is given, the entry of judgment or dismissal (starting a 180-day clock).’ (Citation.)” (Ibid.) While no formal order of dismissal was filed until June 17, 2024, the Hatlevig Court found that the August 15, 2023 notice of would-be dismissal is considered a dismissal for purposes of triggering the time the plaintiff had to move for attorney’s fees because the 45-day period had come and gone, and “[w]hen a case settles, ‘a dismissal of the action generally follows as a matter of law.’ (Citations.)” (Id. at pp. 649-650.) Having had most 180 days following the August 15, 2023 date, the plaintiff failed to timely file his motion for attorney fees. (Id. at p. 650.)

The case here is more straightforward. Here, on September 30, 2025, the Court ordered the case dismissed following Plaintiff’s filing of a Notice of Settlement. That same day, the court clerk then gave notice of the dismissal to all parties. There is no denying that the September 30, 2025 date began the clock for Plaintiff to file his motion for attorney fees. (See above.) However, the Court finds that the 60-day clock, rather than the 180-day clock, was triggered. The “60–day time limit commences to run at notice of entry of judgment or dismissal.” (Sanabria v. Embrey (2001) 92 Cal.App.4th 422, 429 [finding a motion for attorney fees filed more than 60 days after service of written notice of entry of dismissal to be untimely].) The court clerk here unequivocally provided notice of dismissal on September 30, 2025. Sixty days after September 30, 2025 was December 1, 2025. Thus, Plaintiff filing the instant motion on January 30, 2026 is considered untimely.

Lastly, the Court does not find that good cause exists to extend Plaintiff’s deadline to file the instant motion. (Cal. Rules of Court, Rule 3.1702(d) [“For good cause, the trial judge may extend the time for filing a motion for attorney’s fees in the absence of a stipulation or for a longer period than allowed by stipulation.”].) Plaintiff has provided no justifiable explanation as to why he did not file the motion for attorney fees in a timely fashion. That Defendant entered into a

settlement wherein it agreed that Plaintiff is the prevailing party entitled to fees is not a relevant consideration to the Court's analysis, as GM in Hetlevig also entered into a settlement where it agreed that Plaintiff is the prevailing party entitled to fees. The Hetlevig Court still found the plaintiff's motion untimely.

Plaintiff's motion is denied. However, Plaintiff is entitled to his costs as the Court held in its ruling on January 15, 2026.

V.

CONCLUSION

Based on the foregoing, Plaintiff's motion for attorney's fees is DENIED. However,

Plaintiff is entitled to recover the entirety of his claimed costs, which is \$2,789.89. Costs are payable within sixty (60) days of this order.

Dated this 25th
day of June 2026

Hon. Gary D.
Roberts

Judge of the
Superior Court